

FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK
AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Bronx

WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT
IN ITS INDIVIDUAL CAPACITY BUT SOLELY IN
ITS CAPACITY AS OWNER TRUSTEE FOR ONITY
LOAN ACQUISITION TRUST 2025-HB1

Plaintiff,

-against-

JANET LEE MITCHELL, UNITED STATES OF AMERICA ON BEHALF OF THE
SECRETARY OF HOUSING AND URBAN DEVELOPMENT, NEW YORK
STATE DEPARTMENT OF TAXATION AND FINANCE, NEW YORK CITY
PARKING VIOLATIONS BUREAU, NEW YORK CITY ENVIRONMENTAL
CONTROL BOARD

Defendant.

Index No. 818254/2023E

MORTGAGED PROPERTY:

2922 Barkley Avenue
Bronx, NY 10465

COUNTY: Bronx

SBL #: Block: 5423 Lot: 76

Sale Date: June 15, 2026

A. To be completed by the Referee

- Final Judgment Amount per Judgment: \$ 778,547.93
- Adjusted Judgment Amount (Upset Price): \$ 845,696.83
(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
- Sale Price: \$ 600,000
(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
- Surplus Amount (enter \$0.00 if no surplus) \$ 0
***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees
earned in this matter:

\$ 750.00

Referee Name: Kelechi O. Onyeobia, Esq. Telephone: 718-486-3600

Address: 2763 Reservoir Avenue, Bronx, NY 10468-2701

Email: DNYEOBIALAW@YAHOO.COM Signature/Date: _____

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC

Address: 1775 Wehrle Drive, Suite 100,
Williamsville, NY 14221

Telephone: (716) 204-1700

Email: info@grosspolowy.com

Signature/Date: _____

C. To Be Completed by Purchaser

Name: _____

Address: _____

Telephone: _____

Email: _____

Signature/ Date: _____

Additional Copies of this Form can be found at <https://www.nycourts.gov/forms/foreclosure/>